



Center for International Mediators
and Arbitrators

非洲地區副總裁

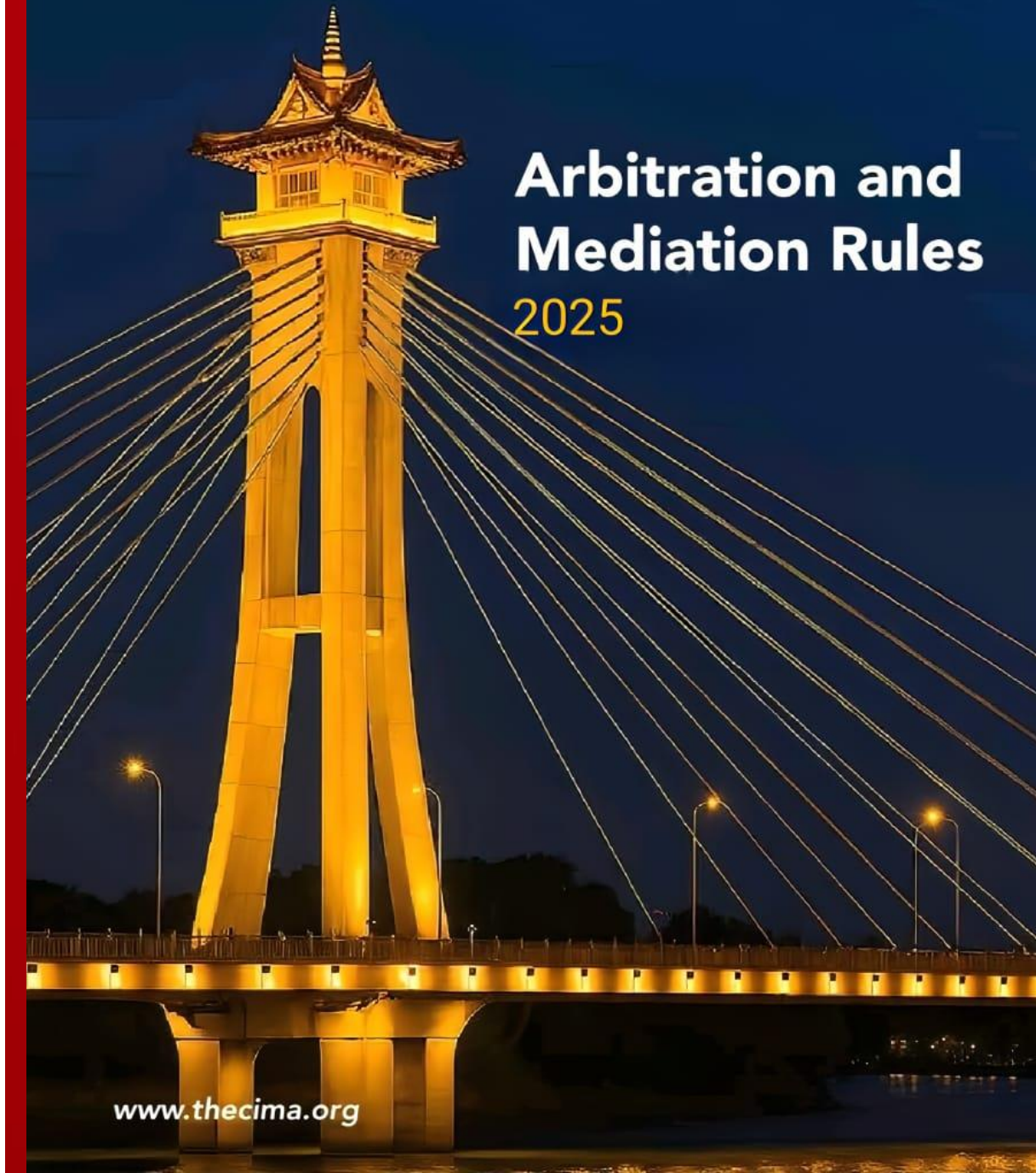
Arbitration & Mediation Rules 2025

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Center for International Mediators
and Arbitrators

Arbitration and Mediation Rules 2025



www.thecima.org

THE CIMA RULES.

The CIMA RULES are a modern and more contemporary framework for arbitration and mediation in Ghana, establishing world-class standards for international and domestic arbitration and mediation proceedings.

Understanding their key provisions is essential for practitioners navigating complex cross-border disputes.





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Overview of the Rules

Arbitration Rules

Comprehensive procedures for conducting domestic and international arbitrations under CIMA's administration, covering everything from commencement to final awards.

Mediation Rules

Structured framework for voluntary dispute resolution through mediation, emphasizing confidentiality, good faith participation, and efficient settlement processes.

Emergency Provisions

Special procedures for urgent relief through emergency arbitrators, providing rapid response mechanisms for time-sensitive disputes requiring immediate intervention.



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Key Definitions & Scope

Domestic Arbitration

An arbitration is domestic if the agreement provides for arbitration in Ghana and:

- *Parties are nationals or habitually resident in Ghana (individuals)*
- *Bodies corporate are incorporated or managed in Ghana*
- *Substantial obligations are performed in Ghana*
- *Subject matter is most closely connected to Ghana*

International Arbitration

An arbitration is international if:

- *Parties have places of business in different states*
- *Juridical seat or performance place is outside Ghana*
- *Parties expressly agree subject matter relates to multiple states*
- *One party's business is situated outside Ghana*



Arbitration: Commencement Process

01

Request for Arbitration

Claimant submits written request to Registrar with party details, contract copy, dispute description, relief sought, and non-refundable fee. Date of complete request marks arbitration commencement.

02

Response Filing

Respondent sends written response within 30 days, admitting or denying claims, presenting counterclaims if any, and nominating arbitrator if required by agreement.

03

Tribunal Formation

Center appoints arbitrators based on party nominations or agreement. Sole arbitrator or three-member panel depending on parties' choice or Center's determination.

04

Proceedings Begin

Once tribunal is formed and fees deposited, arbitral proceedings commence with submission of statements, documents, and scheduling of hearings.

Appointment of Arbitrators

Sole Arbitrator

Default unless parties agree otherwise. Parties may jointly nominate within 30 days. If no agreement, Center appoints considering dispute nature, complexity, and party locations.

Three Arbitrators

Each party nominates one arbitrator. Third arbitrator (chairman) appointed by Center unless parties agree alternative procedure. All appointments subject to Center confirmation.

Multiple Parties

Multiple claimants/respondents jointly nominate arbitrators. If no joint nomination possible, Center appoints entire tribunal and designates chairman.

 **Nationality Rule:** *Where parties are of different nationalities, sole arbitrator or chairman shall not share nationality with any party unless all non-matching parties agree in writing.*

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Arbitrator Standards & Obligations

Impartiality & Independence

Arbitrators must be impartial and independent throughout proceedings. Cannot act as advocate for any party or advise on merits before or after appointment.

Disclosure Requirements

Prior to appointment, prospective arbitrators must provide résumé, agree on fee rates, and sign declaration disclosing any circumstances that could affect impartiality or independence.

Ongoing Duty

Arbitrators must promptly inform Center, other arbitrators, and parties if any circumstances arise during arbitration that could create justified doubts about independence or impartiality.



Challenge & Replacement of Arbitrators

1

Grounds for Challenge

Party may challenge arbitrator if circumstances give rise to justifiable doubts about impartiality or independence. Must act within 15 days of tribunal formation or becoming aware of grounds.

2

Challenge Process

Written statement sent to Arbitral Court, Registrar, tribunal, and all parties. Other party may consent or arbitrator may resign. Arbitral Court decides within 15 days if no resolution.

3

Replacement

Arbitrator replaced upon resignation, death, incapacity, removal, or refusal to act. Center appoints replacement, may follow original process or use discretion. Prior proceedings may be repeated.



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Conduct of Arbitral Proceedings

Fundamental Principles

The Arbitral Tribunal must act fairly and impartially, giving each party reasonable opportunity to present its case. Procedures should be suitable to circumstances, avoiding unnecessary delay or expense while providing fair and efficient dispute resolution.

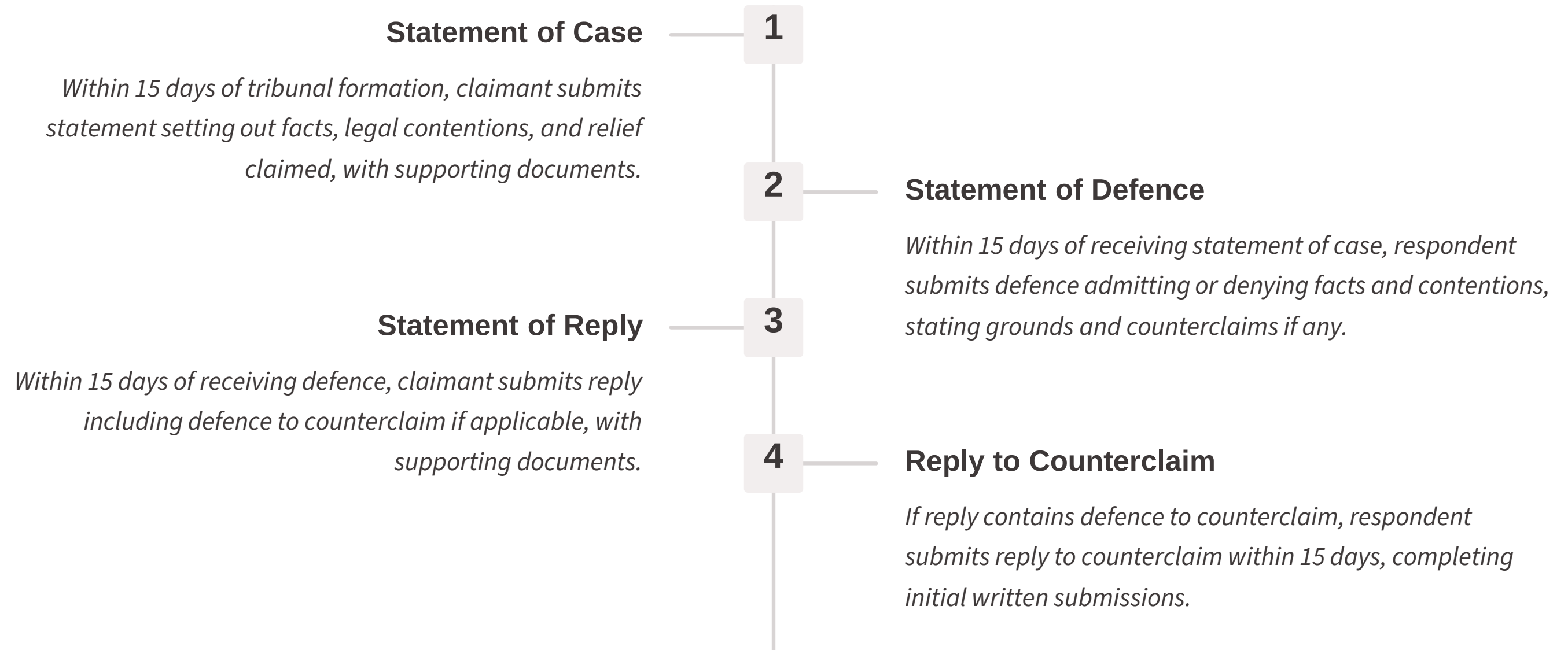
Party Autonomy

Parties may agree in writing on conduct of proceedings, consistent with tribunal's general duties. Parties must do everything necessary for fair, efficient, and expeditious conduct.

Tribunal Discretion

Unless parties agree otherwise, tribunal has discretion to discharge duties as it determines appropriate. In three-member tribunals, chairman may make procedural rulings alone with co-arbitrators' consent.

Written Statements & Document Exchange





Joinder & Consolidation

Joinder of Additional Parties

Party may request joinder of additional party before arbitrator appointment unless all parties agree otherwise. Request must contain same information as request for arbitration with appropriate filing fee.

Additional party submits response and may make claims, counterclaims, or assert set-offs against any other party. Date of joinder request receipt is commencement date against additional party.

Consolidation of Proceedings

Center may consolidate arbitrations on party request where:

- Parties agree to consolidation*
- All claims made under same arbitration agreement*
- Claims under multiple compatible agreements between same parties arising from same legal relationship*

Unless otherwise agreed, arbitrations consolidate into earliest commenced proceeding.

Seat, Language & Applicable Law



Seat of Arbitration

*Parties may agree in writing on seat.
Default seat is Accra, Ghana. Tribunal may determine more appropriate seat after considering circumstances and party comments. Meetings may be held elsewhere with consent.*



Language

*Initial language is that of arbitration agreement unless parties agree otherwise. Tribunal decides language after formation, considering initial language and circumstances.
Translations required for documents in other languages.*



Applicable Law

Arbitration law of the seat applies unless parties expressly agree otherwise in writing. Tribunal decides merits according to law/rules chosen by parties, or if no choice, law it considers appropriate.



Hearings & Evidence

Right to Be Heard

Each party has right to oral hearing on merits unless parties agreed on documents-only arbitration. Tribunal fixes date, time, and place with reasonable notice. All meetings and hearings are private unless parties agree otherwise in writing.

Hearing Procedures

- *Tribunal may submit advance questions to parties*
- *Hearings may be conducted via video-conference, telephone, or electronic means*
- *Tribunal has full authority to establish time-limits*
- *Stenographer costs borne by requesting party in proportions tribunal determines*

Expert Evidence

- *Tribunal may appoint impartial experts to report on specific issues*
- *Parties must provide experts with relevant information and access*
- *Experts participate in hearings for questioning by parties*
- *Expert fees paid from party deposits as part of arbitration costs*

Tribunal Powers & Jurisdiction

Jurisdiction

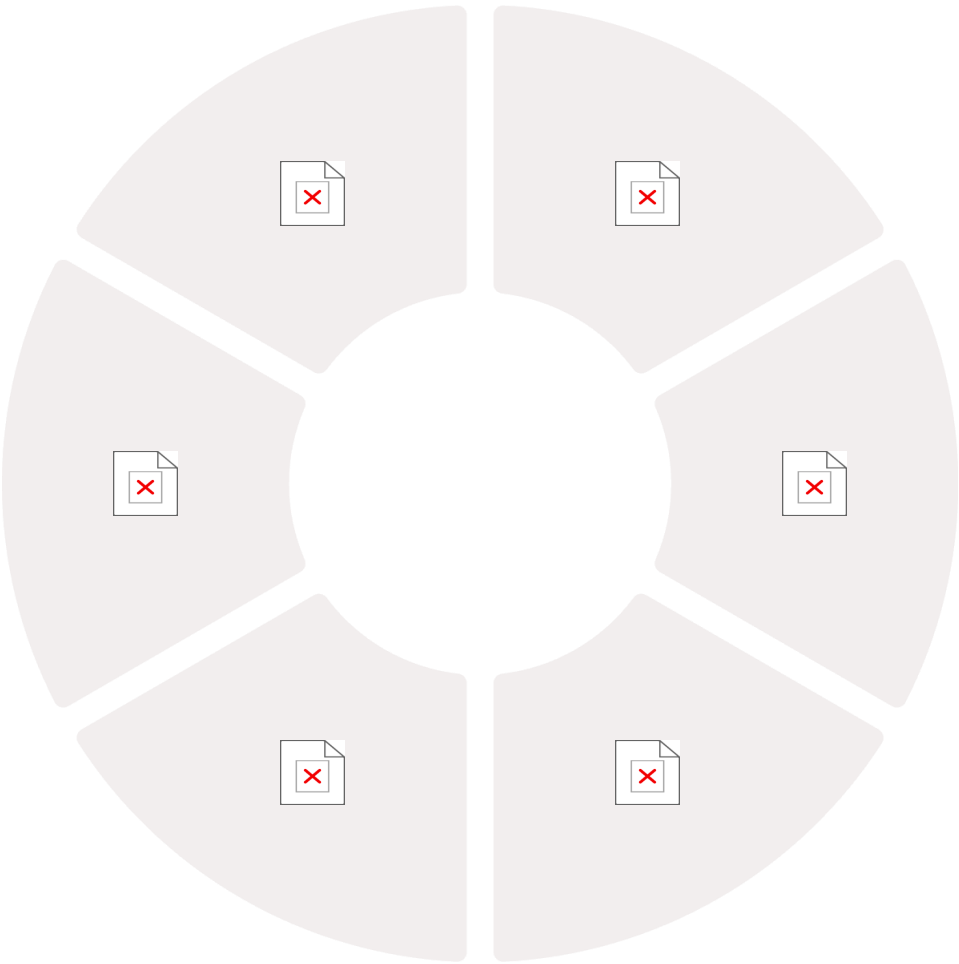
Tribunal has power to rule on its own jurisdiction, including objections to existence or validity of arbitration agreement. Arbitration clause treated as independent of main contract.

Evidence Rules

Determines whether to apply strict rules of evidence and decides admissibility, relevance, weight, time, manner, and form of material presentation.

Document Production

May order document exchanges, require updates, and compel production of documents in responding party's possession reasonably believed relevant and material.



Amendments

May allow parties to amend claims, counterclaims, defences, or replies upon such terms as to costs as tribunal determines appropriate.

Time Extensions

May extend time-limits provided by agreement, Rules, or tribunal's orders during arbitration conduct.

Enquiries

May conduct enquiries, identify issues, ascertain relevant facts and law, and determine merits of parties' dispute and arbitration agreement.

Interim & Emergency Measures



Tribunal's Interim Powers

Unless parties agree otherwise, tribunal may order respondent to provide security for amounts in dispute, order preservation or disposal of property, and grant provisional relief including payment of money or disposition of property.

1

Security for Costs

Tribunal may order claiming party to provide security for legal or other costs by deposit, bank guarantee, or other manner with appropriate terms including cross-indemnity.

2

Emergency Arbitrator

Prior to tribunal formation, party may apply for emergency measures. Emergency arbitrator appointed within 2 days, makes order within 15 days. Order binding until tribunal formed or 90 days.

3

Judicial Authority

Tribunal's interim powers don't prejudice party's right to apply to judicial authority for interim measures before tribunal formation and in exceptional cases.

Costs & Deposits

USD 100	GHS 1,000	3
International Registration	Domestic Registration	Award Timeline
<i>Non-refundable registration fee for international arbitration proceedings.</i>	<i>Non-refundable registration fee for domestic arbitration proceedings.</i>	<i>Months from close of hearing for tribunal to make final award.</i>

Cost Structure

Parties jointly and severally liable for arbitration costs. Center may direct interim or final deposits in appropriate proportions. Tribunal won't proceed without confirming Center has received deposits. Failure to provide deposit may result in claim withdrawal.

Arbitration Costs Include

- Arbitrator fees (calculated by amount in dispute)*
- Administrative costs (percentage-based)*
- Expert fees and expenses*
- Venue and support services*

Cost Allocation

- Tribunal determines proportions parties bear costs*
- May order legal costs paid by another party*
- Costs generally reflect relative success/failure*
- Surplus deposits returned to parties*

The Award

Award Requirements

Tribunal makes award in writing within 3 months from close of hearing. Award must state reasons, date, seat of arbitration, and be signed by tribunal or consenting members. Extensions possible with party consent or tribunal motion.

Final & Binding <i>Award is final and binding on parties. Parties undertake to carry out award immediately without delay, subject to payment of outstanding costs.</i>	Separate Awards <i>Tribunal may make separate awards on different issues at different times, each having same status and effect as any other award.</i>
Consent Awards <i>If parties settle, tribunal may render consent award recording settlement. Such awards don't contain reasons but state they're made by parties' consent.</i>	Interest <i>Tribunal may order simple or compound interest at rates it determines appropriate, without being bound by legal rates, for periods ending not later than award compliance date.</i>



Corrections & Additional Awards

01

Request for Correction

Within 15 days of receiving award, party may request tribunal correct computational, clerical, typographical, or similar errors. Request sent to Registrar with copies to all parties.

03

Correction Form

Correction takes form of dated addendum signed by tribunal or assenting members. Addendum constitutes part of the award.

02

Tribunal Review

If request justified, tribunal makes corrections within 15 days of receiving request. Tribunal may also correct errors on own initiative within 15 days of award date.

04

Additional Awards

Within 15 days of final award, party may request additional award for claims presented but not determined. If justified, tribunal makes additional award within 30 days.



Mediation Rules: Overview

Voluntary Dispute Resolution

CIMA's Mediation Rules provide structured framework for parties seeking amicable settlement through facilitated negotiation. Mediation emphasizes confidentiality, good faith participation, and efficient resolution while preserving party relationships.



Voluntary Process

Parties must agree to mediate. Center may invite parties to mediation upon receiving arbitration response. Parties free to accept or decline invitation at any stage.



Confidentiality

All matters relating to mediation kept private and confidential unless disclosure compelled by law, necessary to enforce settlement, or parties consent in writing.



Mediator Role

Independent, impartial facilitator conducts mediation in appropriate manner considering circumstances, party wishes, and practical considerations for prompt resolution.

Mediation: Commencement & Appointment

Starting Mediation

Party submits written request to Registrar containing:

- *Names, addresses, contact details of parties and representatives*
- *Reference to mediation clause or separate agreement*
- *Reference to contract or legal relationship*
- *Brief explanation of dispute nature and relief sought*
- *Registration fee as specified in Schedule*

Registrar forwards request and mediator list to all parties. Mediation commences when respondent accepts request.

Mediator Selection

One mediator unless parties agree otherwise. Parties jointly appoint within 5 days of acceptance or additional time allowed by Registrar.

***If parties disagree:** Registrar proposes three mediators from CIMA panel. Parties jointly select within 7 days. If no agreement, parties indicate preferences and Registrar appoints accordingly.*

Proposed mediator confirms acceptance within 3 days. If parties reject Registrar's appointment, Center may consider request failed or revoke and reappoint.

Mediation: Process & Conclusion

Mediator Qualifications & Conduct



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Mediator must be accredited on CIMA panel, accredited by recognized institution, or have mediated at least 5 international or domestic mediations. Must be independent, impartial, and act in good faith.

May communicate with parties jointly or separately, directly or through representatives.

Preliminary Conference

Parties participate in preliminary conference to identify issues, decide on document exchange, agree on mediator's terms including cancellation charges, and arrange for mediation to proceed.

1

2

Termination

Mediation terminates when parties sign settlement agreement, mediator declares further attempts unnecessary, party withdraws, 3 months expire, or Registrar orders termination for non-payment.

3

Mediation Sessions

Parties and representatives with settlement authority attend sessions. Mediator facilitates discussions, may hold private caucuses. All communications confidential unless party consents to disclosure.

- ❑ **Mediation to Arbitration:** *If mediation commenced under CIMA rules doesn't result in settlement and parties proceed to arbitration, half of mediation administrative costs credited toward arbitration costs.*



CENTER FOR INTERNATIONAL
MEDIATORS AND ARBITRATORS
England & Wales

In partnership with



LEX MUNDUS
& CENCLA
International Law Firm

Law, Practice and Procedure in Domestic & International Arbitration

AUTUMN SCHOOL

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Fee: GHS: 5,500 | **Date:** 26 - 28 November, 2025

Format: Virtual & In-Person

Register Online:

www.thecima.org

Earn Associate Membership (ACIMArb)

國際調解與仲裁中心





Center for International Mediators
and Arbitrators

Oxfordshire-Africa Forum on
International Arbitration

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Questions & Answers

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